

3.

CASE #	CASE NAME	HEARING NAME
CVPS2602233	LARI VS STATE FARM GENERAL INSURANCE CO.	CROSS PETITION TO DECLARE APPRAISAL NULL AND VOID

Tentative Ruling: No tentative ruling, the hearing is continued to August 3rd. Court Reporter is approved for that date.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2602316	WIRED WORKS LLC VS H.N. AND FRANCES C. BERGER FOUNDATION	MOTION FOR LEAVE TO CONDUCT SPECIFIED DISCOVERY UNDER CODE OF CIVIL PROCEDURE § 425.16(G) BY WIRED WORKS LLC, STATEWIDE SERVICES INC, TONY FIMBRES, CARLOS MARTINEZ

Tentative Ruling: “All discovery proceedings in the action shall be stayed upon the filing of a notice of motion made pursuant to this section. The stay of discovery shall remain in effect until notice of entry of the order ruling on the motion. The court, on noticed motion and for good cause shown, may order that specified discovery be conducted notwithstanding this subdivision.” (C.C.P. §425.16(g).)

“[D]iscovery should be limited to the issues raised in the special motion to strike. [Citation.] In other words, not only did the Legislature desire early resolution to minimize the potential costs of protracted litigation, it also sought to protect defendants from the burden of traditional discovery pending resolution of the motion.” (*Mattel, Inc. v. Luce, Forward, Hamilton & Scripps* (2002) 99 Cal.App.4th 1179, 1190.)

Good cause requires a showing that the specific discovery sought is needed to establish a prima facie case and tailored to that end. (*Abir Cohen Treyzon Salo, LLP v. Lahiji* (2019) 40 Cal.App.5th 882, 891.) If discovery is allowed, it will be limited to the issues raised by the anti-SLAPP motion; i.e., matters that may help plaintiff establish a “reasonable probability of prevailing” on the claim, rather than merely matters to impeach defendant’s credibility. (See *Sipple v. Foundation for Nat’l Progress* (1999) 71 Cal.App.4th 226, 247.)

In Plaintiff’s Reply, Plaintiff submits that the alleged disparaging statements about Plaintiff were made by Mr. Michael Rover on a call to IID’s then General Manager Ms. Jamie Asbury, and can be corroborated by Mr. Cardenas. However, as pointed out by Defendant’s opposition, the inclusion of Mr. Cardenas is tenuous at best, as Plaintiff’s motion states it is informed and believes that Cardenas was the original source. In the declaration of Plaintiff’s counsel, the belief is that Mr. Cardenas reported statements made by Mr. Rover “and/or other persons speaking on behalf of the Foundation”. (Bohm Dec. ¶ 4). This is insufficient good cause to permit a deposition in hopes of obtaining discovery to oppose Defendant’s motion.

As to Ms. Asbury, her direct communication with Mr. Rover would fall under the exception to permit discovery. Such information could assist Plaintiff in arguing the second prong in opposition to the Anti-SLAPP motion, specifically, that Mr. Rover’s communication with IID affected IID’s decision regarding moving forward with the Project with Plaintiffs. Regarding Defendant’s claim that the statements fall under the litigation privilege, without information as to what those statements were or the context in which